

24STCV21750 24STCV21750

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 24STCV21750 Hearing Date: June 29, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

hovhannes vardanyan

, et al.;

Plaintiffs,

vs.

volkswagen group of
america, inc.

, et al.;

Defendants.

Case

No.:

24STCV21750

Hearing

Date:

June
29, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

plaintiffs' motion for attorney's fees,
costs, and expenses

MOVING PARTY: Plaintiffs Hovhannes Vardanyan
and Ohan Melkonyan

RESPONDING PARTIES: Defendants Volkswagen Group of America, Inc. and
LAD-V, LLC

Motion for Attorney's Fees, Costs, and Expenses

The court
considered the moving, opposition, and reply papers filed in connection with
this motion.

DISCUSSION

Plaintiffs Hovhannes Vardanyan and Ohan Melkonyan ("Plaintiffs") move
the court for an order awarding attorney's fees, costs, and expenses pursuant
to the settlement agreement between Plaintiffs and defendants Volkswagen Group
of America, Inc. and LAD-V, LLC in the total amount of \$67,720.80 in fees and
\$3,746.16 in costs and expenses.

First, the court finds—and Defendants do not dispute—that Plaintiff is
entitled to recover attorney's fees and costs from Defendants pursuant to the
Song-Beverly Act and the parties' settlement.

(Civ. Code, § 1794, subd. (d) ["If the buyer prevails in an action under
this section, the buyer shall be allowed by the court to recover as part of the

judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action").) 2

Second, the court finds that Plaintiffs have established, as to the attorney's fees incurred to commence and prosecute this action and to prepare the pending fee motion, a lodestar of \$37,475.00.

"[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. . . . 2 The reasonable hourly rate is that prevailing in the community for similar work.2 The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided."2 (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095 (internal citations omitted); Reck v. FCA US LLC (2021) 64 Cal.App.5th 682, 691 ["To determine a reasonable attorney fee award, the trial court applies the lodestar method"].)2 "[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous."2 (Horsford v. Board of Trustees of California State Univ. (2005) 132 Cal.App.4th 359, 396.)222222

The court finds that the reasonable hourly rates for the legal staff that performed work in this action are as follows: (1) \$650 for attorney Margarian, (2) \$550 for attorney Kimball, and (3) \$150 for Plaintiffs' counsel's legal assistant, Elmira Oganyan. (Margarian Decl., ¶¶ 12-16; Kimball Decl., ¶¶ 2-4, 10.)

The court has considered (1) the billing records of Plaintiffs' legal staff, and (2) the objections to specific entries in Defendants' opposition papers. (Margarian Decl., Ex. A.; Opp., pp. 7:15-11:18.) The court finds that Plaintiff's legal staff reasonably expended a total number of 63.10 hours (46.9 hours for Margarian, 11.4 hours for Kimball, and 4.8 hours for Oganyan) to commence and prosecute this action and to prepare the pending motion.

The court therefore finds that Plaintiffs have established a lodestar figure of \$37,475.00 ((46.9 hours x Margarian's \$650 hourly rate = \$30,485.00)

+ (11.4 hours x Kimball's \$550 hourly rate = \$6,270.00) + (4.8 hours x Oganyan's \$150 hourly rate = \$720.00).

Third, after considering the factors the court may consider in determining whether to adjust the lodestar, the court finds that the lodestar figure should not be adjusted by applying a multiplier. (Margarian Decl., ¶ 25; Kimball Decl., ¶ 15; Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 248 [setting forth factors delineated by the Supreme Court that the trial court may consider in adjusting the lodestar].) 2

Fourth, the court declines to address Plaintiffs' request for costs and expenses because they are the subject of Defendant's motion to strike or tax costs filed on October 15, 2025, set to be heard on September 2, 2026.

ORDER

The court grants plaintiffs Hovhannes Vardanyan and Ohan Melkonyan's motion for attorney's fees, costs and expenses in part as follows.

Pursuant to Civil Code section 1794, subdivision (d), the court orders that plaintiffs Hovhannes Vardanyan and Ohan Melkonyan shall recover from defendants Volkswagen Group of America, Inc. and LAD-V, LLC attorney's fees in the total amount of \$37,475.00.

The court orders plaintiffs Hovhannes Vardanyan and Ohan Melkonyan to give notice of this ruling.

IT IS SO ORDERED.

DATED: June 29, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court